

25NNCV06250 25NNCV06250

County: los-angeles

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Case Number: 25NNCV06250 Hearing Date: July 31, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED; REQUEST FOR SANCTIONS

Hearing Date: 07/31/26

CASE NO./NAME: 25NNCV06250 / Jordyn Green-Brown v. Brady Trucking, Inc., et al.

Moving Party: Defendant Brady Trucking, Inc.

Responding Party: Plaintiff Jordyn Green-Brown

Notice: Sufficient

Ruling: Continue

NOTICE:

The Court requests oral argument on the following issues: the legal and factual basis for imposing sanctions on Plaintiff's former counsel, who was relieved prior to this hearing, and whether Plaintiff's request for a continuance of the Motion to Deem Requests for Admission Admitted should be granted considering her recent loss of counsel.

BACKGROUND

This is a personal injury case arising

from a motor vehicle accident that occurred on November 3, 2023. On September 5, 2025, Plaintiff Jordyn Green-Brown (Plaintiff) filed a Complaint against defendants Brady Trucking, Inc. (Defendant), John Doe, and DOES 1 to 50, inclusive alleging personal injury, property damage, and general negligence. On December 29, 2025, Defendant filed an Answer.

On June 3, 2026, Defendant filed the instant motion to compel requests for admission (RFAs) admitted. On July 10, 2026, the Court granted Vanessa Marie Fantasia's motion to be relieved as Plaintiff's counsel. On July 20, 2026, Plaintiff's former counsel filed a response out of abundance of caution, due to having not yet received the signed July 10th order. On July 24, 2026, Defendant filed a reply.

LEGAL STANDARD

A party must respond to requests for admissions within 30 days after service of such requests. (Code Civ. Proc., § 2033.250, subd. (a).) "If a party to whom requests for admission are directed fails to serve a timely response...(a) [that party] waives any objection to the requests, including one based on privilege or on the protection for work product..." (Code Civ. Proc., § 2033.280, subd. (a).) "The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7." (Code Civ. Proc., § 2033.280, subd. (b).)

Sanctions are mandatory against the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to deem RFA as admitted. (See Code Civ. Proc., § 2033.280(c).) The Court shall impose sanction on the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to compel responses to interrogatories or RPD. (See Code Civ. Proc., §§ 2031.300(c), 2030.290(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

"A request for a sanction shall, in the notice of motion, identify every person, party, and

attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

DISCUSSION

Defendant contends that Plaintiff failed to timely respond to the RFAs on or by the statutory deadline. (Mot., p. 1.)

Here, Defendant’s counsel served Plaintiff with the RFAs by electronic service on December 29, 2025. (Marquez Decl., ¶ 2.) Defendant granted three extensions at the request of Plaintiff, bringing the due date to April 7, 2026. (Marquez Decl., ¶ 3.) On April 1, 2026, Plaintiff served Defendant responses to the RFAs without verifications. (Marquez Decl., ¶ 4.) On April 27, 2026, Defendant requested verifications from Plaintiff and provided additional time to provide the signed verifications. (Ibid.) Defendant argues that because Plaintiff has failed to serve verified responses, Plaintiff has not properly responded to the RFAs. (Mot., p. 2.)

Plaintiff’s former counsel does not substantively oppose the motion but instead requests continuance, in the interest of justice, due to the status of Plaintiff’s representation. (Resp., p. 2.) Further, Plaintiff’s former counsel argues that sanctions are moot because counsel has withdrawn from representation. (Resp., p. 3.) Alternatively, Plaintiff’s former counsel argues the discussion of sanctions should be deferred until Plaintiff retains new counsel. (Ibid.)

In reply, Defendant argues that the hearing should not be continued because Plaintiff should not benefit from her misconduct and failure to comply with discovery. (Reply, p. 3.) Further, Defendant argues that sanctions are not moot because the conduct of Plaintiff’s former counsel necessitated the instant motion. (Reply, p. 4.)

Since Plaintiff’s counsel has withdrawn from representation, and Plaintiff is not currently represented by counsel, the Court continues the instant hearing in the

interests of justice.

CONCLUSION
AND ORDER

Defendant Brady

Trucking, Inc.'s motion to deem RFAs admitted is CONTINUED.

MOVING PARTY to provide notice of
this order.